OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Shoalhaven's new Unreasonable Customer Conduct Policy and where it may conflict with law

Sent 29 October 2026 · To Shoalhaven City Council · Response requested by 13 November 2026

OPEN LETTER

To: Mr Andrew Constance, Chief Executive Officer, Shoalhaven City Council; the Mayor and all Councillors

Copied to: NSW Ombudsman; Office of Local Government; Information and Privacy Commission NSW (Information Commissioner); Australian Human Rights Commission; Anti-Discrimination NSW; SafeWork NSW

From: Stephen Prothero, Eye on Shoalhaven Council

Date: 29 October 2026

Subject: Unreasonable Customer Conduct Policy (CL26.271), adopted 27 October 2026: provisions that appear to go beyond or conflict with NSW and Commonwealth law, and a request that Council and the responsible agencies work together to fix them

STATUS OF THIS LETTER

This is a public open letter to the Chief Executive Officer. It is published by Eye on Shoalhaven Council as a matter of public interest journalism.

It is not a complaint.
It is not a complaint under Council's Complaint Handling Policy, and it is not to be registered, assessed or managed as one.
It is not a Code of Conduct complaint.
It does not allege a breach of the Code of Conduct by any person, and it is not to be referred to the Complaints Coordinator or a conduct reviewer.
It is not an access application. It is not an application under the Government Information (Public Access) Act 2009 (NSW), formal or informal, and no statutory time limit is started by it.
The questions in Part 4 are put to a public official in the same way a journalist puts questions to the head of an organisation. The Chief Executive may answer all, some or none of the questions, and may do so in whatever form and at whatever time he chooses. Some questions can be answered in a line and others may need work. If the Chief Executive intends to comment on any question, a short reply to this email saying so is all that is needed.

The copies to the agencies listed above are sent for their information. Part 3 asks each agency whether it will consider the matters within its own functions and its own processes. Nothing in this letter is a request for a decision on any individual's case.

Replies will be published in full. If no reply is received, that will be recorded as it stands.

Mr Constance, Mayor and Councillors, and colleagues at the agencies copied,

On Tuesday 27 October Council adopted the Unreasonable Customer Conduct Policy "as exhibited". The staff report (CL26.271) records three submissions during exhibition. One of them, which was mine, said the draft "extends beyond the NSW Ombudsman model" and may limit legitimate criticism and scrutiny. It asked for a narrower scope, limits on the public-comment provisions, independent review and stronger protection for GIPA and complaint processes. The report's answer was: "After thorough consideration by Council staff, no changes have been made to the draft policy." The report lists NSW Ombudsman and SafeWork NSW guidance as the external sources used, says no further external consultation was done, and lists no legal advice.

I have since read the policy against the legislation. I am not a lawyer and this is not legal advice. Where I have not read an Act, I say so.

1. Where the policy appears to go beyond or conflict with the law

• Open meetings (policy 4.1.4). The policy allows a ban from Council premises "altogether". Section 10 of the Local Government Act 1993 says everyone is entitled to attend council meetings, and a person may be excluded only on grounds the regulations prescribe. Council's Code of Meeting Practice (clauses 15.19 and 15.23) allows removal for disorderly conduct and limits any bar on re-entry to the remainder of that meeting. The policy has no carve-out for the chamber.
• Contact with councillors (policy 3.1, 3.4, 4.1). Section 232 makes it part of a councillor's role to represent residents and to facilitate communication between the community and the governing body. Section 335 lists the general manager's functions. I found nothing in either that gives the CEO power over a resident's contact with their councillors.
• Formal GIPA applications (policy 4.1.2, 4.1.3). Filing correspondence "without acknowledgement" and capping contact at one item a week or month is probably lawful for informal requests (GIPA section 8(3)). A formal application must be decided within 20 working days (section 57), and silence is a deemed refusal (section 63). Council may refuse to deal with a formal application only on the grounds in section 60(1), "and for no other reason", and must first give the applicant a chance to amend (section 60(4)). The Act deals with repeat applicants through a tribunal order (section 110), not through a council policy.
• Review rights (policy 2.1.1). The policy treats "pursuing and exhausting all available review options", and contacting people "outside our organisation", as unreasonable persistence. Statute provides internal review (GIPA section 82), review by the Information Commissioner (section 89) and the tribunal. The policy does not exempt them. Section 7.1 of the policy does say a resident "may also seek an external review from an oversight agency such as the NSW Ombudsman", which is welcome and does not cure the point.
• Published comment (policy 2.1). "Derogatory or defamatory" comment about staff and

councillors is listed as unreasonable conduct. Whether something is defamatory is a matter for a court. Under section 9 of the Defamation Act 2005 a public body, which includes a local government body, has no cause of action. Individual staff and councillors keep their own rights.

• Disability (policy 2.1.4, 4.1). The policy treats "disorganised" information, "incomprehensible" or "delirious" arguments and "conspiracy theories" as unreasonable. It asks Council to weigh the customer's "personal circumstances (where known and relevant)" but nowhere requires staff to ask whether the conduct is linked to a disability, or whether an adjustment would resolve the problem. As I understand it, the Disability Discrimination Act 1992 (Cth) makes disability discrimination in the provision of services unlawful. I have not read that Act or the Anti-Discrimination Act 1977 (NSW).

• Representatives, dress and hygiene (policy 4.1.5, 2.1.5). The CEO or Executive Leadership Team may approve a resident's representative after considering their "competency and literacy skills", and "poor personal hygiene" and "odour" are listed as unreasonable behaviour. I found no legislative basis for either.

• Work health and safety (policy 4.1). The policy describes the CEO as "the PCBU". Under the Work Health and Safety Act 2011 the person conducting the business or undertaking is the council, and section 5(5) says an elected member does not conduct a business. Staff safety is a real duty and the policy's concern for it is legitimate. My point is that its description of who holds the duty does not match the Act.

The Local Government Act also states principles the policy has to be read against.

Section 8A requires transparency, accountability and fairness. The policy also lists only the Local Government Act and the Work Health and Safety Act as relevant legislation, without section numbers.

2. What the policy does include

The policy requires a written warning with reasons before most restrictions (6.1), limits any restriction to 12 months (6.2), provides for periodic reviews (8.1) and one appeal to a senior officer who was not involved in the decision (7.1), and accepts that Council must still deal with statutory functions such as development applications, waste and water (4.1.6). My concern is the gaps around those safeguards: the CEO can skip the warning "in extreme cases" (6.2), the appeal is internal, and none of the carve-outs mention meetings, GIPA or the rights above.

1. **A request to the agencies copied**

I ask each agency whether it will consider the matters below, within its own functions, and whether it will work with Council to have them resolved. I am not asking any agency to prefer my reading of the law. I ask only that the questions be put to Council and answered on the record.

- **NSW Ombudsman (Ombudsman Act 1974; the Ombudsman's guidance on unreasonable complainant conduct). Does the policy depart from the Ombudsman's model in the ways described in this letter, and does the Ombudsman consider that conduct of that kind falls within section 26 of the Act? The Ombudsman may investigate on his own motion (section 13), and may recommend that a practice be changed.**
- **Office of Local Government (Local Government Act 1993). Does the OLG consider that sections 10, 232, 335 and 8A are consistent with the policy's provisions on meetings, councillor contact and decision-making? Will the OLG issue guidance to councils on policies of this kind?**
- **Information and Privacy Commission NSW (Government Information (Public Access) Act 2009). Does the Information Commissioner consider that the policy's treatment of formal applications, review rights and contact limits is consistent with sections 57, 60, 63, 82 and 89? The Commissioner may receive a complaint about an agency's policies and procedures under the Act.**
- **Australian Human Rights Commission (Disability Discrimination Act 1992) and Anti-Discrimination NSW(Anti-Discrimination Act 1977). Does the absence of any disability step, and the listing of "disorganised", "incomprehensible" and "delirious" as unreasonable conduct, raise issues under the Acts you administer?**
- **SafeWork NSW (Work Health and Safety Act 2011). Does SafeWork consider the policy's description of the PCBU to be consistent with the Act, and does its guidance on psychosocial risk support restrictions of the kind the policy allows?**
- **Questions for Council**

Question 1. Did Council or the CEO obtain legal advice on the policy against the Local Government Act, the GIPA Act, the Defamation Act, the Disability Discrimination Act and the Work Health and Safety Act before or after exhibition? If so, will it be released? If not, why not?

Question 2. Will Council write to the agencies copied to this letter, provide the adopted policy and the public exhibition report, and invite their comment? If not, why not?

Question 3. Pending that, will the CEO confirm in writing that no restriction under the policy will be applied to (a) attendance at meetings of Council and its committees, (b) formal applications and reviews under the GIPA Act, (c) contact between a resident and their councillors, or (d) a person's complaint to an oversight agency?

Question 4. What was the reason for adopting the policy "as exhibited" when the third submission raised these points, and did any councillor receive the submissions or advice on them before the vote?

Question 5. Will the CEO bring a report to the first Ordinary meeting of 2027 setting out the response of each agency and any amendments proposed?

I ask for a response by Friday 13 November 2026. If any question cannot be answered, please say which and why, so the reason can be reported accurately. I ask the same of each agency, within whatever time its own processes allow.

I intend to publish this letter and any reply in full at steveprothero.substack.com and in the Eye on Shoalhaven Council group. If no reply is received by 13 November I will report that plainly.

No adverse finding has been made against any councillor, officer or agency, and none is implied. The statements about the law and the policy are drawn from the Local Government Act 1993, the Government Information (Public Access) Act 2009, the Work Health and Safety Act 2011 and the Defamation Act 2005, Council's Code of Meeting Practice, the Ombudsman Act 1974, and Council's agenda for 27 October 2026. The statements marked as opinion are mine. I will correct any error promptly and with the same prominence.

Yours sincerely,

Stephen Prothero

Independent community journalist | Publisher, Eye on Shoalhaven Council

M | E

Substack: steveprothero.substack.com

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Documents relied on: Shoalhaven City Council Ordinary Meeting agenda, 27 October 2026, item CL26.271 and Attachment 1 (Draft Unreasonable Customer Conduct Policy, as exhibited); Local Government Act 1993 (NSW), ss 8A, 10, 220, 232, 335; Government Information (Public Access) Act 2009 (NSW), ss 8, 57, 60, 63, 82, 89, 110; Work Health and Safety Act 2011 (NSW), ss 4, 5, 19; Defamation Act 2005 (NSW), s 9; Ombudsman Act 1974 (NSW), ss 13, 26; Shoalhaven Code of Meeting Practice (amended 25 August 2026), cl 15.19 and 15.23.
